

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable Greta C. Fall
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Nelson, Robert Anthony
CDC No.: AB2213
Case No.: 06F04398
Date of Sentence: 07/31/2009

Dear Honorable Greta C. Fall:

The purpose of this letter is to provide the court with authority to resentence Robert Anthony Nelson pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Nelson was sentenced in 2009, and was convicted of section 245, subdivision (a)(1), ASSAULT W/DEADLY WEAPON. The trial court sentenced inmate Nelson on 07/31/2009. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Nelson's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Nelson's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable David DeAlba, Sacramento County Presiding Judge
Sacramento District Attorney
Public Defender

AB 2213

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SACRAMENTO			FILED / ENDORSED NOV - 8 2013	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: ROBERT ANTHONY NELSON		DOB: 10/07/1986	06F04398	-A
AKA:				-B
CII NO.:				-C
BOOKING NO.:		☐ NOT PRESENT		-D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☒ 2 ND AMENDED ABSTRACT		-E
DATE OF HEARING 07-31-09	DEPT. NO. 10	JUDGE GRETA C. FALL		
CLERK R. ZAWODNY	REPORTER K. ENNIS #7480	PROBATION NO. OR PROBATION OFFICER A-447,099 ☐ IMMEDIATE SENTENCING		
COUNSEL FOR PEOPLE JEFF HIGHTOWER, DDA		COUNSEL FOR DEFENDANT JOEL DECKLER, CAC ☐ APPTD.		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
— (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE	664 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
4	PC	245(a)(1)	ASSAULT W/DEADLY WEAPON	2006	6/16/09	X			M							3	0
3	PC	245(a)(1)	ASSAULT LIKELY TO PRODUCE GBI	2009	6/16/09	X			M						X		
5	PC	243(d)	BATTERY W/GREAT BODILY INJURY	2006	6/16/09	X			M						X		

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
4	12022.7(A)	3	186.22	10			13 0
3	12022.7(b)	S	186.22(b)	S			
5	186.22(b)	S					

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(f) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 16 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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06F04398

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund.
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund.

☐ * Victim name(s), if known, and amount breakdown in Item 11, below. ☐ * Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$___ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$___ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$___ per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

SEE CR292 FOR ALL OTHER ORDERS.

TOTAL AGGREGATE PRISON TERM: 16 YRS C/S TO 15 YRS TO LIFE W/POSSIBILITY OF PAROLE (MINIMUM PAROLE ELIGIBILITY FOR COUNT 2 IS 15 YRS).

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HISPANIC

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC1170(d).)
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1,177	1,177	176 ☐ 4019 ☒ 2833.1
B			☐ 4019 ☐ 2833.1
C			☐ 4019 ☐ 2833.1
D			☐ 4019 ☐ 2833.1
Date Sentence Pronounced:		Time Served in State Institution:	
		DMH	CDCR CRC
		☐	☐ ☐

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☒ other (specify): DVI, TRACY, CA

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE
R. ZAWODNY

DATE
11-08-2013 NUNC PRO TUNC - 07-31-09